



Notification Waiver Determination

Oscars Group – Hotel Diplomat in Potts Point, NSW

Acquisition	Searock Property Pty Ltd as trustee for the Searock Property Unit Trust and Oscars NSW Ops Pty Ltd (together, Oscars Group) applied for a notification waiver in respect of its proposed acquisition of 100% of the freehold land interest, buildings, licences and business assets of the Hotel Diplomat in Potts Point, New South Wales (Hotel Diplomat), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	18 June 2026

Parties to the Acquisition	The acquirer, Oscars Group, owns and operates community, food & beverage, entertainment and accommodation venues. The Oscars Group own and operate hospitality venues across New South Wales, South Australia, Queensland and Victoria. The target, Hotel Diplomat, is a boutique hotel located in Potts Point New South Wales. It offers hotel accommodation services (and ancillary services related to the operation of a hotel). The parties both supply short-term accommodation services in New South Wales.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no horizontal overlap between Oscars Group and Hotel Diplomat in the supply of short-term accommodation within Potts Point or central Sydney b. there are alternative suppliers of short-term accommodation services within Potts Point and the broader central Sydney area. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to

	arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**